S FOR THE GLOBAL MARITIME DISTRESS AND

SAFETY SYSTEM (GMDSS) (RESOLUTION A.801(19))DRAFT RESOLUTION MSC.199(80)

(adopted on 16 May 2005)

ADOPTION OF

SERVICES FOR THE GLOBAL MARITIME DISTRESS AND

SAFETY SYSTEM (GMDSS) (RESOLUTION A.801(19))

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RESOLUTION MEPC.200(62)

Adopted on 15 July 2011

THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF

POLLUTION FROM SHIPS, 1973RESOLUTION MEPC.200(62)

Adopted on 15 July 2011

THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF

POLLUTION FROM SHIPS, 1973

(Special Area Provisions and the Designation of the Baltic Sea as a Special Area under

MARPOL Annex IV)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING Article 38(a) of the Convention on the International Maritime Organization

concerning the functions of the Marine Environment Protection Committee (the Committee)

conferred upon it by international conventions for the prevention and control of marine

pollution,

NOTING article 16 of the International Convention for the Prevention of Pollution from

Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI of the
Protocol

of 1978 relating to the International Convention for the Prevention of Pollution from

Ships, 1973 (hereinafter referred to as the "1978 Protocol") which together specify the

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of 1978 relating to the International Convention for the Prevention of Pollution from

Ships, 1973 (hereinafter referred to as the "1978 Protocol") which together specify the

amendment procedure of the 1978 Protocol and confer upon the appropriate body of the

Organization the function of considering and adopting

as modified by the 1978 Protocol (MARPOL 73/78),

HAVING CONSIDERED draft

1. ADOPTS, in accordance with article 16(2)(d) of the 1973 Convention, the

present resolution;

2. DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention, that

the amendments shall be deemed to have been accepted on 1 July 2012 unless, prior to that

date, not less than one third of the Parties or Parties the combined merchant fleets of
which

constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet,
have

communicated to the Organization their objection to the amendments;

3. INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of

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constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet, have

communicated to the Organization their objection to the amendments;

3. INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of

the 1973 Convention, the said amendments shall enter into force on 1 January 2013 upon

their acceptance in accordance with paragraph 2 above;

4. REQUESTS the Secretary-General, in conformity with article 16(2)(e) of

the 1973 Convention, to transmit to all Parties to MAR POL 73/78 certified copies of the

present resolution and the text of the amendments contained in the Annex;

5. REQUESTS FURTHER the Secretary-General to transmit to the Members of the

Organization which are not Parties to MAR POL 73/78 copies of the present resolution and its

Annex .

RESOLUTION MEPC.200(62)

Adopted on 15 July 2011

THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF

POLLUTION FROM SHIPS, 1973- 2 -

ANNEX

1 New paragraphs 5bis, 7bis, and 7ter are added to regulation 1:

"5bis Special area means a sea area where for recognized technical reasons in

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POLLUTION FROM SHIPS, 1973- 2 -

ANNEX

1 New paragraphs 5bis, 7bis, and 7ter are added to regulation 1:

"5bis Special area means a sea area where for recognized technical reasons in

relation to its oceanographical and ecological condition and to the particular

character of its traffic the adoption of special mandatory methods for the prevention

of sea pollution by sewage is required.

The special areas are:

.1 the Baltic Sea area as defined in regulation 1.11.2 of Annex I; and

.2 any other sea area designated by the Organization in accordance

with criteria and procedures for designation of special areas with

respect to prevention of pollution by sewage from ships.

7bis A passenger means every person other than:

.1 the master and the members of the crew or other persons

employed or engaged in an